



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Director
Subject: A resolution adopting a fee schedule for planning and development projects
Date: February 14, 2022

Background:

The item for consideration is a fee schedule for development-related applications in the Planning and Development Department. Pursuant to section 1.3.7 of the Unified Development Code, fees are adopted by resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral February 14, 2022
- Finance Committee February 23, 2022
- Final Reading consideration February 28, 2022

Summary:

Fees related to applications within the Planning and Development Department were last updated over 23 years ago on October 25, 1993. The current fees do not adequately cover costs associated with development actions and the proposed fees are designed to recover most costs associated with development actions.

Staff began working on the revised fee schedule in early 2021 and in developing the fee schedule, the following factors were considered:

- Fees of other communities in the region
- Staff management and review time
- Publication costs
- Legal advertisement costs
- Office overhead (10% of staff management and review)
- Data storage and access (Innoprise / Citizen Access)
- Number and complexity of item
- Compliance with requirement to make specific applications
- Degree in which the specific application is a public service

Fees of other communities in the region

Staff's initial task was to review peer nearby jurisdictions to determine if our fees needed adjustment. Communities reviewed included Casper, Fort Collins, Gillette, Kimball, Laramie, Loveland, Timnath, and Wellington. Staff also looked at the nearby counties of Albany, Campbell, Laramie, Larimer, Natrona, and Weld. It was noted that most communities had different types of fees, methodologies, and application classifications that prevented a simple and straightforward comparison. One thing was for certain though, Cheyenne's development-related fees were typically the lowest in the region. For example, a preliminary plat in Greeley had an application fee of \$3,000 + \$10 per lot and Casper's preliminary plat fee was a flat \$1,000 compared to our \$175 fee. Site Plans in Casper ranged between \$600-\$2,000 and Loveland were between \$800-\$2,400 compared to our \$100 fee. This triggered a need to investigate the costs associated with development review.

Staff Management and Review Time

This factor included surveying all employees included in the development review process. Utilized were the average of reported hours per project multiplied by position's average hourly salary plus taxes, worker's comp, benefits, etc. Review time was averaged for all project types. For example, if three items of one type were reviewed over the period of a year by three planners, we would utilize the average time all planners took to review that project and account for their average hourly costs to determine a typical rate.

Publication Costs

The department has worked to reduce publication costs over the course of the year in working with other departments to limit the publication of approved ordinances to the minimum necessary under state statute. Still, several applications (Annexation and Street Vacation) do require publication of the full ordinance which generally ranges between \$300 and \$600 each. Ordinances that may be published by title and summary only have been reduced to a cost of approximately \$50 each. This fee schedule includes publication costs associated with approved ordinances.

Legal Advertisement Costs

The department has reduced costs associated with legal advertisements over the course of the year by consolidating advertisements for projects and removing irrelevant information. Annexations require multiple legal advertisements and specific information average approximately \$180 while regular Planning Commission items average \$30 each. This fee schedule includes publication costs associated with the specific development applications.

Office Overhead (10% of Staff Management and Review)

Included as a cost to process an application, was a 10% fee for office overhead ranging between \$40 and \$150, and averaging \$66.73 per project. In 2021, 273 applications would have been subject to this fee, and it is estimated that at the current rate it would produce approximately \$18,217.29 in annual revenue to capture overhead costs. This was not applied to building permit, sign permits, and several other application types. This element of the fee will offset office furniture, supplies, equipment, printers, etc.

Data storage and Access (Innoprise / Citizen Access)

Presently the City utilizes Harris's ERP Community Development module (Innoprise/CommDev). The Department represents 1/11th of the Help Desk service totaling a proportionate cost of \$529.45 annually. The Planning and Zoning Module has an annual cost of \$11,649.72 which has been equally divided into all project types utilizing this system for planning and zoning purposes. This software is used for project tracking, project review, citizen access, and record retention. The total cost for development-related use of this software and access to the help desk is \$12,179.17 annually. If a new system is implemented, staff will request to modify the fee schedule once again to reflect any cost changes.

Number and complexity of item

Staff evaluated all types of applications that were received in the department and their level of complexity and knowledge necessary to review/complete. Frequent applications included Site Plans (74), Zoning Letter requests (57), Administrative Adjustments (42), as well as action required on items forwarded for review by the Building Division including specific building permits (537) and sign permits (104). Several repetitive projects were given a flat fee, like Building Permits, and others were given a quantitative based fee, like sign permits which are proposed to be calculated on a \$10 per sign basis. More complex projects oftentimes warranted slight bumps in a fee due to the expertise needed while other ones warranted a bump downward and could be considered a public service.

Compliance with Requirement to Make Specific Applications

Several City processes have been problematic to adequately capture. For example, Home Occupations exist throughout the City, however we only have record 229 home occupations having been approved since 2012. We are certain that more exist, but do not want to create a fee that would discourage voluntary compliance and present itself as a barrier. Likewise, temporary signage runs rampant throughout the City. The Development Division manages all temporary signs, however the only ones that are typically reviewed are for temporary placement of signs by nonprofits and community organizations at designated locations within City parks. This fee was set at zero to not penalize the people lawfully erecting temporary signage which is very few. Additionally, temporary signs are not tracked in our data base and implementation of a nominal fee would likely create more steps, complicate a process, and add more work associated with that process resulting in a loss of productivity and a negative monetary effect on the department.

Degree in which the specific application is a public service

A large portion of the City Planning and Development Department is to provide effective, and efficient professional planning services to the community. In 2021 the department received 229 inquiries and hosted 129 preapplication meetings. These services represent 24.8% of the development-related tasks managed annually by a planner. Inquiries typically are informational requests from developers or residents inquiring about allowances on their property or a prospective property. Pre-application meetings are intended to identify any major red flags with a proposed development and most all involved in the development review process attend those meetings on a weekly basis. Pre-application meetings have no fee and represent an approximate \$1,200 value to the developer. Staff believes that these meetings clarify expectations for future development and ultimately reduce potential increased review time, development delays, and staff time spent on applications once formally submitted.

Current Fee Schedule:

Below is the current fee schedule that was derived from Resolution No. 3451 which was adopted on October 25, 1993. Several additional fees have been added over time including Telecommunication Towers and Special Use Permits. Those remain unchanged in the new fee schedule.

Application Type	Fee	Application Type	Fee
Divisions of Land		Other Applications	
Administrative Plat:	\$125	In-Home Child Care / Preschool: 10-15 Children	\$125
Preliminary Plat:	\$175	Commercial Child Care / Preschool:	\$100
Final Plat:	\$125	Wireless Telecommunication, New Site:	\$1,500
Environmental Health Fee (one time w/plat):	\$100	Wireless Telecommunication, Site Modification (Including Antennas):	\$125
Street Vacation:	\$125	Special Use Approval:	\$1,500
Zoning		Temporary Use Approval:	\$0
Zoning Map Amendment:	\$125	Outside User Agreement Application Review:	\$0
Planned Unit Development:	\$125	201 Exception Application:	\$0
Regulating Plan:	\$125	Accessory Dwelling Unit Approval + recording fees	\$125
Site Plan (New/Adjustment):	\$100	Other Fees	
Conditional Use Approval:	\$125	Zoning Certification (up to one hour research):	\$10/hr
Administrative Use Approval:	\$125	Other Research (each additional hour):	\$10/hr
Appeals and Relief		Photocopies up to 11"x17" (per copy):	\$0.20/copy
Zoning Variance:	\$75	Photocopies Oversized (larger than 11"x17") (per copy):	\$3/copy
Administrative Adjustment:	\$100	Staff time to research & handle (per hour):	\$10.00/hr
Annexation			
Annexation:	\$150		

Proposed Fee Schedule:

The proposed fee schedule is attached to the Resolution as Attachment A. Only two fees are being carried over from the previous fee schedule - Telecommunication Towers and Special Use Permits. As previously indicated in this memorandum the fees were derived by considering a variety of factors.

Attached to this memorandum is an attachment labeled "Application Cost Summary" summarizing the costs associated with specific development review. Staff notes that the initial subdivision calculations were based on lot quantity ranges, not a base fee plus fee per lot basis. Upon evaluation of lots platted with subdivision types, staff determined that a base plus per lot fee resulted in essentially the same cost-recovery but more equitably distributed the financial burden of a subdivision review to developers based on their plat size. Below is a summary of the lots associated with subdivision types.

Subdivision Type Summary			
Application Type	Number of Applications	Total Lots Platted	Average Lots Per Plat
Administrative	17	33	1.94
Expedited	7	216	30.86
Preliminary	5	195	39.00
Final	4	325	81.25

For example, under this scenario, the typical Final Plat application would be \$1,915 dollars [\$700 base fee + \$1,215 (81 lots x \$15)]. The attached sheet showed a cost of \$3,000 for any subdivision over 35 lots which has since been revised to a per lot basis.

Telecommunication Safe Harbor Amounts:

Telecommunications are regulated by the Federal Communications Commission (FCC), and they have established specific rates by order at which telecommunication providers can be charged for development applications and annual leases. The safe harbor amounts are:

- \$500 for a single up-front application that includes up to five small wireless facilities, with an additional \$100 for each small wireless facility beyond five,
- \$270 per small wireless facility per year for all recurring fees, including any possible ROW access fee or fee for attachment to municipally owned structures in the ROW, and
- \$1,000 for nonrecurring fees for a new pole.

The FCC views these amounts as safe harbors because it believes they are low enough that no carrier would challenge them if they were imposed unilaterally in a local government's regulations. Nothing in the FCC's overarching order prevents a local government from charging higher fees. However, under the FCC's framework, if a carrier files a lawsuit challenging the fees imposed by a local government, the burden would be on the local government to demonstrate that the amount is a reasonable approximation of its costs and that its costs are reasonable. The FCC did not specify a methodology for calculating cost, or what expenses could be included. To this date, we have not had specific applications to analyze exact costs and have opted to keep our existing fees for large macro-cell towers and adopt the safe harbor amounts for small cell and distributed antenna systems (DAS).

Projected Revenue Comparison to Expenses:

The Planning and Development divisions are comprised of seven employees with three employees mostly responsible for processing development-related requests. The division does have overlap into the Planning Division, Parks and Greenway Division, and Office Manager and Planning and Development Director positions. Total salaries plus all taxes and benefits for the three primary planners are projected to total \$232,037.64 in FY2023 based on current funding. Projected revenue based on this fee schedule is \$255,955.00 which should account for the planners responsible for current development review and a portion of the overflow to the others within the department, including the Planner II Long Range, Parks and Greenway Manager, Office Manager, and the Director. Revenue in 2021 was approximately \$43,025. The Department is seeking the Senior Planner Position be reinstated which will cost approximately \$114,900 for salary plus benefits. Addition of the new staff member will likely result in additional hours to review individual applications and give existing staff more time to focus on individual projects and eliminate potential for error or oversights.

The entire department's anticipated FY 2023 payroll budget is \$895,917.80 (with Senior Planner added) (\$780,994.00 with no new positions) compared to FY 2022's \$741,573.16 payroll budget. Staff will continue to monitor costs associated with development review and may ask for further adjustments in the future.

Staff Recommendation:

Staff is recommending the Governing Body adopt the resolution to establish a new Planning and Development Fee Schedule.

Attachments:

1. Application Cost Summary
2. Resolution and Attached Fee Schedule

Application Cost Summary

Type	Proposed Fee	Total	Minutes Staff time	Staff Management and Review Costs	Publication Costs	Legal Ad	Office Overhead **	Data Storage and Citizen Access***	Staff cost per hour	Existing Fee
Development Applications										
Administrative Adjustments	\$ 100	\$ 514.48	540.00	\$ 429.79	\$ -		\$ 42.98	\$ 41.71	\$ 47.75	\$ 100.00
Annexations	\$ 1,625	\$ 1,620.35	825.00	\$ 694.22	\$ 600.00	\$ 215.00	\$ 69.42	\$ 41.71	\$ 50.49	\$ 150.00
Accessory Dwelling Unit	\$ 600	\$ 468.91	510.00	\$ 388.36			\$ 38.84	\$ 41.71	\$ 45.69	\$ 125.00
Administrative Use	\$ 500	\$ 499.48	540.00	\$ 416.15			\$ 41.62	\$ 41.71	\$ 46.24	\$ 125.00
Conditional Use	\$ 825	\$ 817.39	815.00	\$ 677.89		\$ 30.00	\$ 67.79	\$ 41.71	\$ 49.91	\$ 125.00
Comprehensive Plan Amendment	\$ 750	\$ 734.85	750.00	\$ 602.85		\$ 30.00	\$ 60.29	\$ 41.71	\$ 48.23	\$ -
Child Care Application	\$ 375	\$ 353.99	355.00	\$ 283.89			\$ 28.39	\$ 41.71	\$ 47.98	\$ 125.00
Home Occupation	\$ 300	\$ 278.79	270.00	\$ 215.53			\$ 21.55	\$ 41.71	\$ 47.90	\$ -
Preliminary PUD	\$ 1,300	\$ 1,248.46	1,170.00	\$ 1,069.77		\$ 30.00	\$ 106.98	\$ 41.71	\$ 54.86	\$ 125.00
Final PUD	\$ 1,100	\$ 1,021.25	1,200.00	\$ 817.76	\$ 50.00	\$ 30.00	\$ 81.78	\$ 41.71	\$ 40.89	\$ 125.00
Variance	\$ 675	\$ 658.48	683.33	\$ 533.42		\$ 30.00	\$ 53.34	\$ 41.71	\$ 46.84	\$ 75.00
Special Use Permit	\$ 875	\$ 853.94	765.00	\$ 711.12		\$ 30.00	\$ 71.11	\$ 41.71	\$ 55.77	\$ -
Temporary Sign Permit	\$ -	\$ 218.54	192.50	\$ 160.76			\$ 16.08	\$ 41.71	\$ 50.11	\$ -
Temporary Use	\$ 600	\$ 577.67	585.00	\$ 487.24			\$ 48.72	\$ 41.71	\$ 49.97	\$ -
Right-of-way Vacation	\$ 1,000 + \$5/ sq. ft. vacated	\$ 965.04	675.00	\$ 539.39	\$ 300.00	\$ 30.00	\$ 53.94	\$ 41.71	\$ 47.95	\$ -
Wireless telecommunication facility	\$ 1,500	\$ 420.74	442.50	\$ 344.57			\$ 34.46	\$ 41.71	\$ 46.72	\$ 1,500.00
Zone Change	\$ 850	\$ 836.56	840.00	\$ 649.86	\$ 50.00	\$ 30.00	\$ 64.99	\$ 41.71	\$ 46.42	\$ 125.00
Appeal of Admin Dec	\$ 800	\$ 780.42	510.00	\$ 671.55			\$ 67.16	\$ 41.71		\$ -
Site Plans										
Site Plan -Change of Use Documentation with no proposed exterior modifications	\$ 300	\$ 302.94	270.00	\$ 237.48			\$ 23.75	\$ 41.71	\$ 52.77	\$ 100.00
Site Plan Modifications affecting less than 25% of an approved plan	\$ 450	\$ 501.63	450.00	\$ 418.11			\$ 41.81	\$ 41.71	\$ 55.75	\$ 100.00
Site Plan Modifications affecting 25% or more of an approved plan	\$ 900	\$ 882.40	915.00	\$ 764.26			\$ 76.43	\$ 41.71	\$ 50.12	\$ 100.00
Site Plan New	\$ 1,800	\$ 1,663.22	1,845.00	\$ 1,474.10			\$ 147.41	\$ 41.71	\$ 47.94	\$ 100.00
Divisions of Land										
Plat - Administrative	\$ 800	\$ 784.01	847.50	\$ 647.55		\$ 30.00	\$ 64.75	\$ 41.71	\$ 45.84	\$ 125.00
Plat - Preliminary (less than 10 lots)	\$ 825	\$ 820.67	825.00	\$ 680.87		\$ 30.00	\$ 68.09	\$ 41.71	\$ 49.52	\$ 175.00
Plat - Preliminary (10-35 lots)	\$ 1,100	\$ 1,023.37	1,065.00	\$ 865.14		\$ 30.00	\$ 86.51	\$ 41.71	\$ 48.74	\$ 175.00
Plat - Preliminary (more than 35 lots)	\$ 1,400	\$ 1,235.47	1,320.00	\$ 1,057.96		\$ 30.00	\$ 105.80	\$ 41.71	\$ 48.09	\$ 175.00
Plat - Final (less than 10 lots)	\$ 775	\$ 716.61	720.00	\$ 586.28		\$ 30.00	\$ 58.63	\$ 41.71	\$ 48.86	\$ 125.00
Plat - Final (10-35 lots)	\$ 1,000	\$ 923.92	960.00	\$ 774.74		\$ 30.00	\$ 77.47	\$ 41.71	\$ 48.42	\$ 125.00
Plat - Final (more than 35 lots)	\$ 1,300	\$ 1,135.07	1,215.00	\$ 966.69		\$ 30.00	\$ 96.67	\$ 41.71	\$ 47.74	\$ 125.00
Plat - Expedited (less than 10 lots)	\$ 2,000	\$ 1,077.12	1,110.00	\$ 914.01		\$ 30.00	\$ 91.40	\$ 41.71	\$ 49.41	\$ 300.00
Plat - Expedited (10-35 lots)	\$ 2,500	\$ 1,236.75	1,320.00	\$ 1,059.13		\$ 30.00	\$ 105.91	\$ 41.71	\$ 48.14	\$ 300.00
Plat - Expedited (more than 35 lots)	\$ 3,000	\$ 1,454.83	1,575.00	\$ 1,257.38		\$ 30.00	\$ 125.74	\$ 41.71	\$ 47.90	\$ 300.00
ROW / Public easement vacation with final plat	\$ 5 per sq. ft. difference vacated/dedicated									\$ -
Other Services										
Outside User's Agreement	\$ 600	\$ 547.83	495.00	\$ 460.11			\$ 46.01	\$ 41.71	\$ 55.77	\$ -
201 Exceptions	\$ 600	\$ 547.88	460.11	\$ 460.15			\$ 46.02	\$ 41.71	\$ 60.01	\$ -
Zoning verification letter - Standard letter*	\$ 25						\$ -	\$ 41.00		\$ 10.00
Zoning verification, Non-standard letter*	\$ 100						\$ -	\$ 41.71		\$ 10.00
Building Permit Review Fee*	\$ 50						\$ -			\$ -
Sign Permit Review Fee*	\$ 25						\$ -			\$ -
Pre Application Meetings	\$ -	\$ 1,185.54	1,380.00	\$ 1,036.79			\$ 103.68		\$ 45.08	\$ -
Average							\$ 66.73			

* Not based on staff time review

** 10% of Staff Management and Review. Partly funds copiers, paper, supplies

*** 1/11th of help desk fee (\$529.45) + Planning and Zoning Module (\$11,649.72) costs = \$12,179.17

Note: All plats pay a \$100 Environmental Health fee which is collected by the City and paid to County Environmental Health

RESOLUTION NO. _____**ENTITLED: "A RESOLUTION ADOPTING A FEE SCHEDULE FOR PLANNING AND DEVELOPMENT PROJECTS."**

WHEREAS, on January 23, 2012, the Governing Body approved Ordinance 3943 creating the Unified Development Code (UDC); and

WHEREAS, on October 25, 1993, the Governing Body, jointly with the County Commissioners, adopted Resolution 3451 creating a schedule of fees related to development and subdivision applications; and

WHEREAS, the costs of conducting business has increased and the established fees do not reflect costs associated with development actions or the services offered by the City; and

WHEREAS, pursuant to UDC Section 1.3.7 the City may charge fees to defray some or all of the cost of processing land development applications; and

WHEREAS, adoption of a fee schedule is necessary to defray the costs associated with processing land development applications; and

WHEREAS, staff has conducted internal research and surveys to measure costs associated with development, including but not limited to, costs associated with staff review time, legal notice, ordinance publication, data storage, development related software, and data storage; and

WHEREAS, staff recognizes that some services of the department are a public service in the interest of the public safety, health and welfare of the Cheyenne community and fees to defray total costs may not be necessary and appropriate and may be nominal to encourage compliance; and

WHEREAS, a fee schedule has been created and is attached to this resolution as Attachment A consisting of one (1) page which is attached hereto and incorporated herein.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, the fee schedule shown in Attachment A of this resolution is hereby adopted and all previous development fees are hereby replaced.

BE IT FURTHER RESOLVED, that this resolution shall become effective March 31, 2022, and shall apply to all applicable applications filed on or after the date.

PRESENTED, READ AND ADOPTED THIS 28TH DAY OF FEBRUARY 2022.

Patrick J. Collins, Mayor

(Seal)
ATTEST:

Kristina F. Jones, City Clerk

City of Cheyenne Planning and Development Fee Schedule March 31, 2022

Development Applications		Fee
Administrative Adjustments (per request)	\$	100
Annexations	\$	1,625
Accessory Dwelling Unit	\$	600
Administrative Use	\$	500
Conditional Use	\$	825
Comprehensive Plan Amendment	\$	750
Child Care Application	\$	375
Home Occupation	\$	50
Preliminary PUD	\$	1,300
Final PUD	\$	1,100
Variance	\$	675
Special Use Permit	\$	1,500
Temporary Sign Permit	\$	0
Temporary Use	\$	600
Right-of-way Vacation	\$1,000 + \$5/sq. ft. vacated	
Zone Change	\$	850
Appeal of Admin Dec	\$	850

Site Plans		Fee
Change of use documentation with no proposed facade modifications	\$	100
Modifications affecting only the facade or less than 25% of an approved plan	\$	450
Modifications affecting 25% or more of an approved plan	\$	900
New construction or demolition and rebuild	\$	1,800

Divisions of Land		Fee
Plat - Administrative	\$	800
Plat - Preliminary	\$	700
		+ \$25 per lot
Plat - Final	\$	700
		+ \$15 per lot
Plat - Expedited -	\$	1,600
		+ \$40 per lot
Right-of-way vacation with final plat		+\$5 per sq. ft. vacated if vacation exceeds dedication

Telecommunication		Fee
Wireless telecommunication facility (Macro cell)	\$	1,500
Wireless telecommunication facility - modification to existing site (Macro cell)	\$	500
Small Cell Base Fee (up to 5 batched)	\$	1,000
Small Cell -Per unit exceeding 5 in batch		Base Fee + \$100 each
Small Cell -New pole review		Base Fee + \$1,000 each

Other Services		Fee
Outside User's Agreement	\$	600
201 Exceptions	\$	600
Zoning verification letter - Standard letter	\$	25
Zoning verification, Non-standard letter	\$	100
Building Permit Review Fee	\$	50
Sign Permit Review Fee (per sign)	\$	10
Pre Application Meetings	\$	0

*An additional \$100 Environmental Health fee is collected by the City and paid to County Environmental Health